



2nd Legislature

Enactment No. 5

To establish a uniform Travel Policy for members of the Chickasaw Tribal Legislature.

IN THE CHICKASAW TRIBAL LEGISLATURE

May 17, 1985

Mr. STEPHENS introduced the following bill; which was referred to the Legislative Committee and to the Rules and Ethics Committee

A BILL

To define and set travel policies and allowances for members of the Chickasaw Tribal Legislature, and for other purposes.

Be it enacted by the Tribal Legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Legislature Travel Policy Act of 1985."

SEC. 2. The Legislature finds that---

- 1 (1) the travel policy as contained in the Personnel Policies of the
2 Chickasaw Nation are not compatible with the duties and activities of Tribal
3 Legislators;
- 4 (2) a need exists to identify authorized travel in concise terms;
- 5 (3) certain activities merit support and attendance by Legislators in order
6 to gain, enhance and broaden their knowledge of Chickasaw problems and af-
7 fairs;

1. (4) such knowledge will enable the members of the Chickasaw Tribal
2 Legislature to better serve their constituents and the Chickasaw Nation;

3 (5) one of the principal goals of the Chickasaw Legislature is to provide
4 responsive, effective and economical service to the citizens of the Chickasaw Na-
5 tion.

6 SEC. 3. For the purpose of this Act---

7 (1) "Chairman" means the duly elected chairperson of the Tribal
8 Legislature;

9 (2) "Travelers" shall mean all of those who are authorized to travel
10 under the authority of this Act;

11 (3) "Committee" means that five-member committee known as the
12 Legislative Committee as defined in the Legislative Organization Act of 1984;

13 (4) "Constituiton" means the Constitution of the Chickasaw Nation, as
14 originally adopted by the people on August 27, 1983;

15 (5) "Mileage Pay" means the rate allowed per mile of travel as specified
16 in the Chickasaw Legislature Travel Policy;

17 (6) "Per Diem" means the rate of subsistence as proscribed in the
18 Chickasaw Legislature Travel Policy, which is attached.

19 SEC. 4. In accordance with Article VII of the Constitution, the Chickasaw
20 Tribal Legislature hereby establishes these rules and policies regarding travel of
21 its members:

22 (1) Legislature Sessions and meetings;

23 (a) Mileage will be paid to Legislators attending regular or called ses-
24 sions of the Legislature;

1 (b) for all session which open and do not adjourn within a six-hour
2 period, per diem will be paid;

3 (2) Committee Meetings:

4 (a) Mileage only is paid for attending committee meetings unless other
5 wise specified by the Legislature in formal session;

6 (3) Training Seminars/Special Assignments:

7 (a) Travel and per diem will be paid for attendance at the annual train-
8 ing seminar for legislators;

9 (b) The Legislative Committee may appoint, or the Legislature as
10 a whole may designate, a member or members to travel on special assignment.
11 In cases of this kind, mileage and per diem will be paid as applicable. In the case
12 of an appointment by the Chairman, travel shall be approved, in ad-
13 vance, by the Legislative Committee;

14 (4) National/State Meetings:

15 (a) Each member of the Legislature may attend one (1) national and
16 one (1) state meeting, each year. The privilege cannot be assigned or delegated.
17 All out-of-state meetings will be considered national meetings. All in-state
18 meetings will be considered state meetings. Maximum per diem will be five (5)
19 days for national meetings and three (3) days for state meetings.

20 (b) Additional meetings may be attended with advanced approval by
21 the Legislative Committee. Such approval may be accomplished in regular ses-
22 sions or by telephone. A majority vote of the committee is necessary.

23 (5) Intertribal Functions:

(a) Legislators may collect mileage only, for attendance at any intertribal functions, within 200 miles of the Chickasaw Nation;

(b) With the Legislative Committee approval, per diem may also be allowed;

(6) Chickasaw Tribal Functions:

(a) Legislators will be paid mileage to attend tribal functions which are general in nature, and which are held inside the boundaries of the Chickasaw Nation, and shall include but not be limited to, the following:

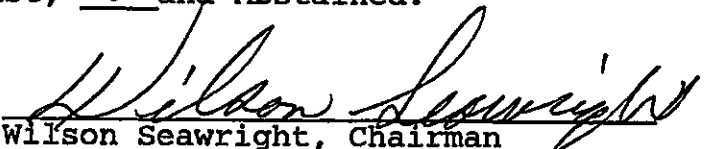
- (1) Community Meetings;
- (2) Dedication Ceremonies;
- (3) Chickasaw Nation Annual Meeting.

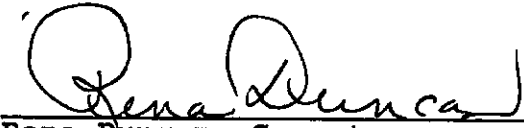
SEC. 5. Any existing legislation which otherwise addresses the intent of this Act, is hereby repealed.

Executed in regular session of the Chickasaw Tribal Legislature, at Ada, Oklahoma, on July 19, 1985, by a vote of ___ For, ___ Against, and ___ Abstained.

NOTE: Enactment #5 was never signed after the July 19, 1985 meeting.

The Chickasaw Tribal Legislature reaffirmed Enactment #5 and approved its validity back to July 19, 1985 when Resolution # 88-16 was executed in regular session, at Sulphur, Oklahoma on December 18, 1987, by a vote of 13 For, 0 Against, 0 and Abstained.


Wilson Seawright, Chairman
Chickasaw Tribal Legislature


Rena Duncan, Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
Chickasaw Nation

DEC 21 1987

RESOLUTION 88-16

REAFFIRM ENACTMENT #5

- WHEREAS: The Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and
- WHEREAS: The Legislature voted to approve Enactment #5 "Rules for Travel Expenses of the Chickasaw Tribal Legislature" on July 19, 1985, and
- WHEREAS: The Legislature has abided by these rules since their approval, and
- WHEREAS: There does not exist a "signed" copy of the above mentioned enactment.

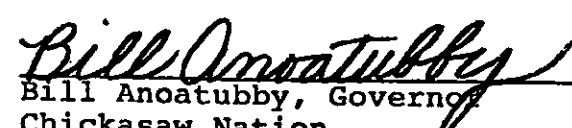
THEREFORE BE IT RESOLVED THAT: the Chickasaw Tribal Legislature does by this resolution reaffirm the need for Enactment #5 and hereby directs the current chairman and secretary of the Legislature to sign said document, which can then be presented for the Governor's concurrence.

BE IT FURTHER RESOLVED THAT: the Chickasaw Legislature approves any and all expenditures which have been processed under rules of Enactment #5 since its approval on July 19, 1985.

Executed in regular session of the Chickasaw Tribal Legislature at Sulphur, Oklahoma on December 18, 1987, by a vote of 13 Ayes, 0 Nays, and 0 Abstained.


Wilson Seawright, Chairman
Chickasaw Tribal Legislature


Rena Duncan, Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
Chickasaw Nation

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